

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 26, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.

(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

Line 4	23CV425926	Tony Sladek et al. v. Stanford Health Care et al.	Defendants' motion to compel the production of documents at plaintiff Tony Sladek's deposition. (Code Civ. Proc., § 2025.480.) Notice is proper and the motion is unopposed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489.) The motion relates to requests for the production of documents at the third session of plaintiff's deposition. Defendants' motion indicates plaintiff neither objected nor produced documents responsive to request Nos. 1, 2, 7, 8, 10, 12, 13, 15, 16, and 17. The documents relate to plaintiff's finances. Defendants argue the documents are discoverable because plaintiff alleges the injury he allegedly sustained while in defendants' care led to loss of income and business opportunity related to a rental property business. On good cause shown, the motion is GRANTED. Plaintiff is ordered to produce documents responsive to those requests without objections, no later than July 1, 2026. Defendants' request for sanctions is GRANTED IN PART. Mandatory sanctions are imposed against plaintiff in the amount of \$1,639.95 (consisting of the \$39.95 filing fee and \$1,600 in attorney fees (four hours at \$400/hour).
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Line 5	25CV475988	Emory Street Partners, LLC v. Dana Hendricks et al.	Plaintiff Emory Street Partners, LLC's motion to compel depositions and the production of documents for four individuals or entities: defendant Dana Hendricks; the person most knowledgeable of defendant Vermont Street Partners, LLC; Margaret Hendricks; and the person most knowledgeable of Grand Lake Partners, LLC. (Code Civ. Proc., § 2025.450.) Notice is proper and the motion is unopposed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489.) The depositions of Margaret Hendricks; and the person most knowledgeable of Grand Lake Partners, LLC, were noticed when they were not parties to the case. Margaret Hendricks and Grand Lake Partners, LLC were added as defendants by order in February 2026. Margaret Hendricks and Grand Lake Partners, LLC have motions to quash service of summons set for hearing in October 2026. But those motions to quash do not insulate them from attending a deposition because depositions are not limited to parties to an action. (Code Civ. Proc., § 2025.010.) Plaintiff's motion and supporting evidence indicate that the four depositions were properly noticed; that no objection or motion for protective order was raised or filed before the deposition dates; and that no individual appeared for any deposition. On good cause shown, the motion is GRANTED. The following individuals and entities are compelled to appear for depositions no later than July 17, 2026: defendant Dana Hendricks; the person most knowledgeable of defendant Vermont Street Partners, LLC; Margaret Hendricks; and the person most knowledgeable of Grand Lake Partners, LLC. Those individuals and entities must produce the documents identified in the notices of deposition previously served by plaintiff without objections. Plaintiff's request for sanctions is GRANTED IN PART. Mandatory sanctions are imposed
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